

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS
STATE OF COLORADO

Case No. 2019-7916

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO
PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF ALANDA
SEA MARTIN, LICENSE NO. LPC.0005229.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners (the "Board") and Alanda Sea Martin ("Respondent"), as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a professional counselor ("LPC"), being issued license number LPC.0005229, in the State of Colorado on January 12, 2009, has been licensed at all relevant times herein. Respondent's LPC license expired on or about August 31, 2021.
3. This Order is a full and final resolution of case number 2019-7916. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Based on its review of case number 2019-7916, the Board alleges Respondent violated § 12-245-224(1)(b)¹, C.R.S. by failing to fully comply with the Stipulation and Final Agency Order in Board case number 2018-584. Respondent denies the allegation.
5. Although Respondent denies the Board's allegations, Respondent agrees that if the allegations were proven by the Board at hearing, Respondent would be found to have violated the aforementioned provision of the Mental Health Practice Act.

PERMANENT RELINQUISHMENT

6. Respondent hereby permanently relinquishes her license and right to practice as a LPC in the State of Colorado, commencing on the effective date of this Order, and requests that the Board accepts said relinquishment. Such relinquishment

¹ Previously codified as section 12-43-222, C.R.S.

shall have the same force and effect as a revocation ordered by the Board. Respondent agrees not to reapply for a license to practice as a LPC in the State of Colorado.

7. Following relinquishment of her registration and license, Respondent shall not perform any act requiring a license to practice as a LPC in the state of Colorado.

TERMS AND CONDITIONS

8. Respondent is fully aware and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to § 12-245-226, C.R.S., and hereby waives those rights. Further, Respondent acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

9. This Order is entered into by the parties voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein. The parties understand that they have the right to be represented by counsel, and are so represented in this matter.

10. This Order shall become an enforceable Order of the Board when it is accepted and signed by the Program Director or authorized Board representative and served on Respondent and her counsel of record.

11. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a "Board Order" for purposes of § 12-245-224, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §§ 12-245-224, 12-245-226, and 24-4-104(9), C.R.S.

12. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

13. This Order constitutes the entire agreement between Respondent and the Board. There are no other provisions, agreements, or promises, expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

14. This Order shall be admissible as evidence at any hearing held before the Board.

15. This Order shall be a public record in the custody of the Board.

EFFECTIVE DATE

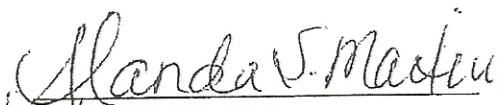
16. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Boards.

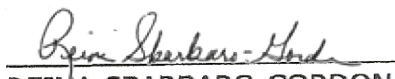
AGREED TO AND ACCEPTED
BY:

AGREED TO AND ORDERED BY:

RESPONDENT

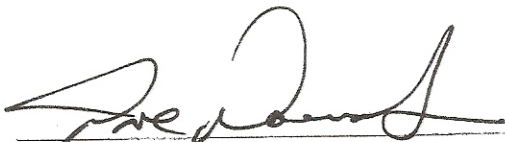
STATE BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS


ALANDA SEA MARTIN
LPC.0005229

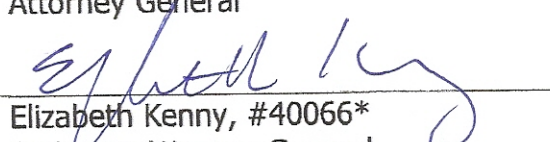

REINA SBARBARO-GORDON
Program Director

Effective this 18 day of November,
2021.

APPROVED AS TO FORM


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The FOREGOING Stipulation and Final Agency Order is effective upon service to Respondent, on this 18th day of November, 2021.